



CHAPTER cxxviii.

An Act to confirm a Provisional Order under the Private A.D. 1911.
Legislation Procedure (Scotland) Act 1899 relating to
Paisley District Tramways. [18th August 1911.]

WHEREAS His Majesty's Secretary for Scotland has made
the Provisional Order set forth in the schedule hereunto
annexed under the provisions of the Private Legislation Pro- 62 & 63 Vict.
cedure (Scotland) Act 1899 and it is requisite that the said c. 47.
Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present Parliament
assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Paisley District Tramways Short title.
Order Confirmation Act 1911.

A.D. 1911.

S C H E D U L E.

PAISLEY DISTRICT TRAMWAYS.

*Provisional Order to regulate the issue of the share capital
of the Paisley District Tramways Company and for
other purposes.*

WHEREAS the Paisley District Tramways Company (in this Order called "the Company") were incorporated by the Paisley District Tramways Order 1901 and under the powers contained in the Paisley District Tramways Orders 1901 to 1908 have constructed and work a system of tramways in the county of Renfrew eighteen miles or thereabouts in length of which fourteen miles or thereabouts are double and four miles or thereabouts single line and are authorised to raise capital and to borrow moneys to the amounts respectively of three hundred and ninety-five thousand pounds and one hundred and thirty-one thousand pounds :

And whereas the said tramways have with all necessary electrical equipment depôts car-sheds cars and other works and plant been constructed and provided at the cost of three hundred and ninety thousand eight hundred pounds by the British Tramways and General Construction Company, Limited under various contracts entered into between that company and the Company :

And whereas it was agreed between the Company and the said construction company that the share capital of the Company should not be issued to the public until the system was completed and the actual results of working the same ascertained :

And whereas the Company in pursuance of such agreement have not exercised their borrowing powers and have created and issued share capital to the amount only of six hundred and twenty ordinary shares of ten pounds each and such shares are with the exception of eight pounds per share on one hundred and twenty shares fully paid up :

And whereas it is expedient that the Company should be authorised to create and issue one-half of their said share capital

[1 & 2 GEO. 5.] *Paisley District Tramways* [Ch. cxxviii.]
Order Confirmation Act, 1911.

as ordinary shares and one-half thereof as preference shares with the priorities rights liabilities privileges and preferences and on the terms and conditions in this Order provided and to form and maintain sinking contingency or reserve funds for the further security of their preference shares and loan capital : A.D. 1911.

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the Paisley District Tramways Order 1911 and shall come into operation at the date of the passing of the Act confirming the same and the Paisley District Tramways Orders 1901 to 1908 and this Order may be cited together as the Paisley District Tramways Orders 1901 to 1911. Short title and commencement of Order.

2. Notwithstanding anything contained in the Paisley District Tramways Orders 1901 to 1908 and the Acts incorporated therewith the following provisions shall apply to the creation and issue of the share capital of the Company (whether such capital be authorised as original or additional capital) and may be exercised by the Company by resolution passed at any general meeting of the Company called and held in accordance with the provisions of those Orders and the Acts incorporated therewith :— Creation and issue of share capital by Company.

(1) The Company may create and issue any portion not exceeding in all one-half of their authorised capital of three hundred and ninety-five thousand pounds as preference shares with such rights liabilities privileges and preferences as they think fit Provided that the nominal amount of such preference shares shall not at any time exceed the nominal amount of capital issued as ordinary shares :

(2) The Company may provide that such preference shares shall be entitled to a cumulative preferential dividend or interest not exceeding the rate of five pounds per centum per annum and that if the profits of any half-year are not sufficient to pay such dividend or interest the deficiency shall be made good out of the

A.D. 1911.

profits of any subsequent half-year or other available funds of the Company :

- (3) Such preference shares may from time to time be issued by the Company with such rights of priority and other rights in the distribution of the assets of the Company as the Company may think fit (including the right to repayment of the amount of preference capital at the time issued and paid up and of any arrears or deficiency of dividend thereon in priority to the ordinary share capital) and the Company may provide that when the holders of such preference shares shall have received repayment in full of the amounts paid up by them and of any arrears or deficiency in the dividend which should have been paid to them thereon they shall not in respect of such shares be entitled to any further participation in the assets of the Company :
- (4) The Company may on such terms and conditions as they think fit form and maintain special sinking contingency or reserve funds for the purpose of securing the repayment in any distribution of the assets of the Company of any issue of preference shares of the Company and of the payment of any arrears or deficiency of dividend thereon and may provide for half-yearly or other payments out of profits into such funds and for the application thereof to the payment of dividends on such issue of preference shares and to the purchase of such preference shares or of other securities or otherwise and for the final distribution of such funds and they may appoint trustees to receive hold manage and apply such funds all on such terms and conditions and with such powers and immunities as the Company may prescribe :
- (5) Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any preference shares issued under the authority of this section :
- (6) The terms and conditions on which any preference shares are issued shall be clearly stated on the certificate of such shares.

[1 & 2 GEO. 5.] *Paisley District Tramways* [Ch. cxxviii.]
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3. The Company may on such terms and conditions as they think fit form and maintain sinking funds for the redemption of mortgages or apply to that purpose any of the funds of the Company (not appropriated to and required for any other purpose) or any authorised contingency funds and may appoint trustees to receive hold manage and apply such funds on such terms and conditions and with such powers and immunities as the Company may prescribe.

A.D. 1911.

Sinking
fund for
mortgages.

4. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the confirming Act or otherwise in relation thereto shall be paid by the Company.

Costs of
Order.

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